ABSTRACT

Industries – SIPCOT – Land Acquisition – Thoothukudi District – Thoothukudi Taluk – Allikulam, Keela Thattaparai, Melathattaparai, Umarikottai, Perurani, Ramasamypuram and Therkku Silukkanpatti Villages – 758.75.00 Hectares (1874.11 acres) of lands for SIPCOT Industrial Park under the provisions of the Tamil Nadu Acquisition of Land for Industrial Purposes Act, 1997 (Tamil Nadu Act 10/1999) - District Level Private Negotiation Committee (DLPNC)/State Level Private Negotiation Committee (SLPNC) – Fixation of the flat rate - Approved – Orders –Issued.

INDUSTRIES, INVESTMENT PROMOTION & COMMERCE (SIPCOT-LA) DEPARTMENT

G.O.(Ms).No.29 **Dated: 08.03.2024**
சோபகிருது வருடம், மாசி 25,
திருவள்ளுவர் ஆண்டு – 2054

Read:

1. G.O.(Ms) No.100, Industries (SIPCOT-LA) Department, dated 26.02.2021.
2. District Collector, Thoothukudi Letter No.A10/474/ Allikulam Scheme/2023, dated 14.10.2023
3. From the Commissioner of Land Administration, Letter Roc.No.LAIII(2)/ 5889762/2023, dated 22.11.2023.

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ORDER:

In the Government Order 1st read above, administrative sanction was accorded for acquisition of 897.49.50 Hectares of patta lands in Allikulam, Keela Thattaparai, Mela Thattaparai, Umarikottai, Perurani, Ramasamypuram and Therkku Silukkanapatti Villages of Thoothukudi Taluk and District for SIPCOT Industrial Park.

2. In the letter 2rd read above, The District Collector, Thoothukudi has sent the proposal to approve the rates arrived by the District Level Private Negotiation Committee Meeting held on 01.02.2023, 02.02.2023, 09.02.2023, 17.02.2023, 24.02.2023, 09.08.2023, 17.08.2023, 18.08.2023, 23.08.2023 and 24.08.2023 by way of placing before the State Level Private Negotiation Committee in respect of acquisition of an extent of 758.75.00 Hectares (1874.11 acres) in Allikulam, Keela Thattaparai, Melathattaparai, Umarikottai, Perurani, Ramasamypuram and Therkku Silukkanpatti Villages, Thoothukudi Taluk and Thoothukudi District for SIPCOT Industrial Park under the provisions of the Tamil Nadu Acquisition of Land for Industrial Purposes Act, 1997.

3. The proposal of the District Collector/ recommendation of the District Level Private Negotiation Committee was placed before the State Level Private

Negotiation Committee meeting held on 10.11.2023 and the same was approved by the Committee.

4. In the letter 3rd read above, the Commissioner of Land Administration has sent the District Collector's report & the minutes of the State Level Private Negotiation Committee meeting to Government and requested to issue necessary orders for the following:

(a) To approve the flat rate values viz., Rs.5.00 lakhs, Rs.7.00 lakhs and Rs.9.00 lakhs per acre (inclusive of all components as per G.O.(Ms).No.411, Revenue and Disaster Management Department, dated 06.08.2020 and Rehabilitation and Resettlement benefits as per Second Schedule of RFCTLARR Act, 2013) for an extent of 688.83.68 Hectares (1701.42 acres).

(b) In respect of lands claimed to be owned by M/s.PACL falling under acquisition, the District Collector, Thoothukudi may be directed to verify the title and the legal position and decision may be taken to take over the lands as per the rules in force, by acquisition, purchase, declaration of surplus and reservation under Rule 13, or any other suitable mode and it may be proposed by the District Collector, Thoothukudi appropriately separately.

(c) In respect of Boodhan lands falling under acquisition, the lands must be taken as per the rules and provisions of the Boodhan Board and it may be proposed by the District Collector, Thoothukudi appropriately separately.

(d)To direct the District Collector, Thoothukudi to determine the compensation in respect of Temple Patta lands falling under acquisition as per the provisions of RFCTLARR Act, 2013 and the acquisition to be proceeded by adopting the statutory steps under the Tamil Nadu Acquisition of Land for Industrial Purposes Act, 1997.

(e) To direct the District Collector, Thoothukudi to determine the compensation in respect of residential type of lands falling under acquisition as per the provisions of RFCTLARR Act, 2013/G.O.(Ms).No.411, Revenue and Disaster Management [LA-I(1)] Department, dated 06.08.2020 whichever is beneficial to the land owners for an extent of 12.51.50 Hectares, in Allikulam and Keelathattaparai villages.

(f) To direct the District Collector, Thoothukudi to estimate the values of structures/trees identified in the acquired lands through concerned Departments and the same shall be given to the land owners along with other statutory benefits permitted under RFCTLARR Act, 2013 (or) G.O.(Ms).No.411, Revenue and Disaster Management (LA-I(1)) Department, dated 06.08.2020.

(g) To direct the District Collector, Thoothukudi to pursue the Land Acquisition process by adhering statutory steps as stipulated in the Tamil Nadu Acquisition of Land for Industrial Purposes Act, 1997 and the compensation amount may be determined as per the provisions of RFCTLARR Act, 2013

and other relevant rules in force for the lands where the land owners are not agreed for the above proposed flat rates (or) not having legitimate land records.

5. The Government after careful examination have decided to accept the proposal of the Commissioner of Land Administration as approved by the District Level Private Negotiation Committee/State Level Private Negotiation Committee and accord approval for fixation of the land value at the flat rate values viz., Rs.5.00 lakhs, Rs.7.00 lakhs and Rs.9.00 lakhs per acre (inclusive of all components as per G.O.(Ms).No.411, Revenue and Disaster Management Department, dated 06.08.2020 and Rehabilitation and Resettlement benefits as per Second Schedule of RFCTLARR Act, 2013) for an extent of 688.83.68 Hectares (1701.42 acres) as detailed below:

Sl. No	Unit	Extent to be acquired		Classification of lands	GLV (in Rs.)		Market value determined as per norms (in Rs.)		Proposed Flat rate per acre recommended by the DLPNC/SLPNC (inclusive of all components) (in Rs.)
		(in Hectare)	(in Acre)		Per Hectare	Per Acre	Per Hectare	Per Acre	
1	2	3	4	5	6	7	8	9	10
1.	I, IV, V	40.40.50	99.80	Dry Manavari Type – III	42,000	17,004	42,086	17,039	5,00,000/-
2.		24.92.50	61.56	Dry Manavari Type – I	88,500	35,830	99,116	40,128	
3.		37.31.00	92.15	Dry Manavari Type - III	99,499	40,283	100,504	40,690	
4.		100.39.50	247.98	Dry Manavari Type – III	99,499	40,283	99,770	40,393	
5.		1.16.00	2.87	Dry Lands Well Irrigation Type- I	1,24,500	50,405	1,24,500	50,405	
6.		1.60.00	3.95	Dry Manavari Type-III	1,34,000	54,251	1,94,000	78,543	
7.		48.09.18	118.79	Dry Manavari Type - I	1,94,000	78,543	1,95,501	79,150	
8.		1.38.50	3.42	Dry Manavari Type - I	3,31,500	1,34,211	3,31,500	1,34,211	

9.	II, VI, VII	4.32.00	10.67	Dry Manavari Type - III	2,49,000	1,00,810	2,49,000	1,00,810	7,00,000/-
10.		93.75.00	231.56	Dry Manavari Type - II	2,98,500	1,20,850	3,00,000	1,21,457	
11.		72.39.00	178.80	Dry Manavari Type - II	2,98,500	1,20,850	2,98,865	1,20,998	
12.		9.55.50	23.60	Dry Manavari Type - I	3,31,500	1,34,211	3,31,500	1,34,211	
13.		6.66.00	16.45	Dry Manavari Type - III	3,35,000	1,35,628	3,37,785	1,36,755	
14.		65.09.00	160.77	Dry Manavari Type – I	3,73,500	1,51,215	4,45,134	1,80,216	
15.	VIII, IX	4.57.50	11.30	Dry Lands Well Irrigation Type - I	3,48,000	1,40,891	4,17,281	1,68,940	9,00,000/-
16.		88.33.00	218.18	Dry Manavari Type - I	4,97,000	2,01,215	5,00,548	2,02,651	
17.		88.89.50	219.57	Dry Manavari Type - I	4,97,000	2,01,215	4,98,120	2,01,668	
Total		**688.83.68**	**1701.42**						

6. The District Collector, Thoothukudi is directed to verify the title and the legal position in respect of the following lands claimed to be owned by M/s.PACL falling under acquisition an extent of 55.54.82 Hectares (136.70 acres) and to take a necessary action for taking over the lands as per the rules in force, by acquisition, purchase, declaration of surplus and reservation under Rule 13, or any other suitable mode:

Sl. No.	Extent to be acquired		Classification of the lands	GLV (in Rs.) (Per Acre)	Market value as per norms (in Rs.) (Per Acre)
	(in Hectare)	(in Acre)			
1	2	3	4	5	6
1.	2.11.50	5.22	Well Irrigation Type- I (Umarikottai PACL Land)	35,425	35,425
2.	0.86.00	2.12	Dry Manavari Type- I (Melathattaparai PACL Land)	35,830	40,128
3.	0.71.00	1.75	Dry Manavari Type-III (Umarikottai PACL Land)	54,251	78,543
4.	51.66.32	127.61	Dry Manavari Type- I (Umarikottai PACL Land)	78,543	79,150
Total	**55.54.82**	**136.70**			

7. Further, the District Collector, Thoothukudi is also directed as follows:-

(i) To take a separate action in respect of the following Boodhan lands falling under acquisition an extent of 0.26.50 Hectares, the lands as per the rules and provisions of the Boodhan Board:

Sl. No.	Extent to be acquired		Classification of the lands	GLV (in Rs.) (Per Acre)	Market value as per norms (in Rs.) (Per Acre)
	(in Hectare)	(in Acre)			
1	2	3	4	5	6
1.	0.26.50	0.65	Dry Manavari Type- I (Ramasamypuram Bhoodhan Land)	1,51,215	1,80,216

(ii) To determine the compensation in respect of the following Temple Patta lands falling under acquisition an extent of 1.78.50 Hectares as per the provisions of RFCTLARR Act, 2013 and the acquisition to be proceeded by adopting the statutory steps under the Tamil Nadu Acquisition of Land for Industrial Purposes Act, 1997:

Sl. No.	Extent to be acquired		Classification of the lands	GLV (in Rs.) (Per Acre)	Market value as per norms (in Rs.) (Per Acre)
	(in Hectare)	(in Acre)			
1	2	3	4	5	6
1.	0.52.00	1.28	Dry Manavari Type- III (Perurani Temple patta Land)	40,283	40,690
2.	1.26.50	3.12	Dry Manavari Type- II (Keelathattaparai Temple Land)	1,20,850	1,21,230
Total	**1.78.50**	**4.40**			

(iii) To determine the compensation in respect of the following residential type of lands falling under acquisition as per the provisions of RFCTLARR Act, 2013/G.O.(Ms).No.411, Revenue and Disaster Management [LA-I(1)] Department, dated 06.08.2020 whichever is beneficial to the land owners for an extent of 12.51.50 Hectares, in Allikulam and Keelathattaparai villages:

Sl. No.	Unit	Extent to be acquired		Village and Classification of the lands	GLV (in Rs.) (Per Sq.mtr)	Market value as per norms (in Rs.) (Per Sq.mtr)
		Hectare	Acre			
1	2	3	4	5	6	7
1.	VIII	4.15.50	10.26	Allikulam - Residential Class-II Type - I	220/-	220.09

2.	VI	5.09.50	12.58	Keelathattaparai -Residential Class- I Type - I	365/-	365.24
3.	VII	3.26.50	8.06	Keelathattaparai - Residential Class- I Type - I	365/-	365.24
Total		**12.51.50**	**30.90**			

(iv) To estimate the values of structures/trees identified in the acquired lands through concerned Departments and the same shall be given to the land owners along with other statutory benefits permitted under RFCTLARR Act, 2013 (or) G.O.(Ms).No.411, Revenue and Disaster Management (LA-I(1)) Department, dated 06.08.2020.

(v) To pursue the Land Acquisition process by adhering statutory steps as stipulated in the Tamil Nadu Acquisition of Land for Industrial Purposes Act, 1997 and to determine compensation amount as per the provisions of RFCTLARR Act, 2013 and other relevant rules in force for the lands where the land owners are not agreed for the above proposed flat rates (or) not having legitimate land records.

8. The District Collector, Thoothukudi is also directed to obtain the correct details of the pattadars while giving compensation to the land owners.

(BY ORDER OF THE GOVERNOR)

V.ARUN ROY
SECRETARY TO GOVERNMENT

To

The Commissioner of Land Administration,
Chepauk, Chennai - 600 005.

The Managing Director,
SIPCOT,
19-A, Rukmani Lakshmipathy Road,
Egmore, Chennai – 600 008.

The District Collector, Thoothukudi District.

The Special District Revenue Officer, (LA),
Thoothukudi Taluk and District.

Copy to:

The Industries, Investment Promotion
& Commerce (OP-II) Department,
Secretariat, Chennai - 600 009.

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// Forwarded by order //

08/03/2024.

SECTION OFFICER

8/3/2024